UNITED STATES BANKRUPTCY COURT
EASTERN DISTRICT OF KENTUCKY
LONDON DIVISION

In Re:

Michael Jason Williams
aka Jason Williams
aka Michael J. Williams

Debtor.

Case No. 24-60490

Chapter 11

Judge Gregory R. Schaaf

MOTION FOR RELIEF FROM AUTOMATIC STAY OF PROPERTY KNOWN AS A 2023 HARLEY-DAVIDSON FLHRXS ROAD KING SPE, VIN: 1HD1KVP19PB616318

The Creditor, Harley-Davidson dba Eaglemark Savings Bank ("Movant"), hereby moves the Court, pursuant to 11 USC §362(d) to lift the automatic stay from the estate the personal property known as a 2023 HARLEY-DAVIDSON FLHRXS ROAD KING SPE, VIN: 1HD1KVP19PB616318 so that Movant may enforce its lien against the Debtors as hereinafter described.

In support of its Motion, Movant offers the attached memorandum.

MEMORANDUM IN SUPPORT OF MOTION FOR RELIEF FROM STAY

1. The Debtor filed a Chapter 11 case on 05/24/2024 – referred to as the "Petition Date."
2. The Trustee of the estate of the debtors in this case is Charity S. Bird.
3. Movant has a secured claim in this case in the amount of $28,992.04 plus 13.29% interest per annum. This claim is secured by a security interest in the following collateral: a 2023 HARLEY-DAVIDSON FLHRXS ROAD KING SPE, VIN: 1HD1KVP19PB616318 (the "Property"), which is more fully described in the contract and title which is attached to the Proof of Claim. There is an unsecured portion of the claim in the amount of $9,217.04.
4. A copy of the Proof of Claim filed in this case by Movant, along with copies of all relevant supporting documents establishing Movant's perfected security interest in the above-described collateral, is attached hereto.
5. The post-petition monthly payments due for June 20, 2024 to and including August 20, 2024 remain unpaid in the amount of $1,798.56 plus attorney fees and costs. There is currently due the unpaid principal and accrued interest balance of $29,980.12.

6. The value of the Property is $19,775.00 according to the NADA Official Used Car Guide.

7. The proposed Subchapter V Small Business Plan of Reorganization under Chapter 11 indicates that this claim will be satisfied by Debtor surrendering the property.

8. Cause exists to lift the automatic stay since the interest of the creditor is not being adequately protected as the Debtors is in arrears as outlined above and the collateral continues to depreciate in value.

WHEREFORE, Movant respectfully requests that this Court enter an Order terminating the Automatic Stay as it relates to the Property to permit Movant to enforce its rights on the property herein described and for other such relief as may be just.

Respectfully Submitted,

/s/ Molly Slutsky Simons
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Attorney for Movant

NOTICE

Please take notice that parties in interest, shall have Fourteen (14) days from the date of this motion within which to file a response to the motion and a request and notice of hearing on such response. If no response if timely filed, the order filed contemporaneously with this motion may be entered by the Court without a hearing on the motion.

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CERTIFICATE OF SERVICE

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I hereby certify that a copy of the foregoing was served by the method set forth below, upon the below listed parties on September 11, 2024.

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By Notice of Electronic Filing to:

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By United States mail to:

All Creditors on the Mailing Matrix

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/s/ Molly Slutsky Simons

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